Harveer vs State Of U.P. And 7 Others on 25 May, 2023

Author: Surya Prakash Kesarwani

Bench: Surya Prakash Kesarwani

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HIGH COURT OF JUDICATURE AT ALLAHABAD


A.F.R.

Neutral Citation No. - 2023:AHC:116735-DB

Court No. - 3

Case :- WRIT - C No. - 4161 of 2023


Petitioner :- Harveer

Respondent :- State Of U.P. And 7 Others

Counsel for Petitioner :- Jayant Prakash Singh

Counsel for Respondent :- C.S.C.


Hon'ble Surya Prakash Kesarwani,J.
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Hon'ble Anish Kumar Gupta,J.

1. Heard Shri Jayant Prakash Singh, learned counsel for the petitioner, Shri M.C. Chaturvedi, learned Additional Advocate General assisted by Shri Ankur Tandon, learned counsel for the respondent no.1 and Shri Rajeshwar Tripathi, learned Standing Counsel for the respondent nos.2 to 7.

2. This matter is being heard since 01.03.2023. Despite demarcation report dated 30.05.2022 submitted by revenue authorities after demarcation, the police authorities of Police Station- Hazratnagar Garhi, Tehsil and District- Sambhal have not vacated their illegal and unauthorized possession from the land of the petitioner and other land owners of Khasra Plot Nos. 275, 277 and

278. Consequently, this Court passed orders dated 18.04.2023, 02.05.2023 and 23.05.2023 requiring the respondents to file counter affidavits/personal affidavits and respond to the allegations of the petitioner of threats to him by the local police to implicate him in false case and to demolish his construction. Thereafter, referring to the aforesaid orders dated 01.03.2023, 18.04.2023, 02.05.2023 and 23.05.2023, this Court passed a detailed order dated 24.05.2023 incorporating the facts and circumstances, evidences and admitted case of the respondents that they encroached over 'bhoomidhari' land of individuals, of Khasra Plot No. 275 to the extent of 0.0385 hectare, Khasra Plot No. 277 measuring 0.161 hectare and Khasra Plot No. 278 measuring 0.016 hectare, as evident from the report of tehsil authorities appearing at page no.18 of the counter affidavit of the respondent no.3 dated 29.04.2023. Paragraphs no.4 to 12 of the order dated 24.05.2023 passed by this Court incorporating the facts and evidences on record, are reproduced below:

> "4. It is admitted case of the respondents that the Police Department is owner of merely Khasra plot No. 276/2 (276 Kha) measuring 0.047 hectares of Village- Hazrat Nagar, Garhi, Tehsil and District- Sambhal, which is recorded in the Revenue records in the name of Police Station- Hazrat Nagar, Garhi. The police has encroached and grabbed land of several individuals including the petitioner. After the orders were passed by this Court as aforequoted, the State-respondents have vacated the land of the petitioner bearing Khasra Plot No. 275 to the extent of 0.0385 hectares. Despite insistence of other individuals land owners to vacate their land, the respondents continued to be an illegal and unauthorized occupation of land of Khasra Plot No. 277 measuring 0.0161 hectares and Khasra Plot No. 278 measuring 0.016 hectares. It prima facie appears that under pressure of the Police Authorities or on their own, the respondent nos. 3 & 6, namely District Magistrate- Sambhal and Tehsildar- Sambhal have very conveniently suppressed the fact of illegal and unauthorized occupation of the Police Department over the lands of individuals, which fact is emerging from the report of the Lekhpal appearing at page 19 and 20 of the affidavit dated 29.4.2023 filed by the respondent no. 3.
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> 5. In his affidavit dated 22.05.2023, the Superintendent of Police, Sambhal has also concealed this material fact and despite having knowledge that the Police has illegally and unauthorizedly encroached and grabbed the land of individuals being part of Khasra Plot No. 275 measuring 0.0385 hectares, Khasra Plot No. 277 measuring 0.0161 hectares and the Khasra Plot No. 278 measuring 0.016 hectares, total 0.2155 hectares, he filed the affidavit dated 22.05.2023 showing ignorance of the Police Department regarding illegal and unauthorized encroachment/land grabbing and despite having knowledge of illegal, unauthorized encroachment over Khasra Plot Nos. 277 and 278, he has not made any effort to get it vacated and instead suppressed this fact in his affidavit and made clear attempt to mislead this Court.
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> 6. Likewise, the respondent no. 3 i.e., District Magistrate, Sambhal, in his personal affidavit dated 22.05.2023 suppressed the fact of illegal and unauthorized encroachment/land grabbing the lands of individuals by the Police Station and

attempted to mislead the Court that the land of Khasra Plot No. 275, 277 & 278 are owned by 70 Khatedars and land of Khasra Plot No. 278 are owned by 24 Khatedars.

7. The Personal affidavit of the respondent no. 5 i.e., Sub-Divisional Officer, Tehsil and District Sambhal, dated 22.05.2023 is on the same line as that of the affidavit filed by the District Magistrate- Sambhal, but he filed a copy of report dated 18.05.2023 of the team which inspected the spot. This report is appearing at page 9 of the affidavit of the respondent no. 5 which reveals that the land of Khasra Plot Nos. 277 and 278 are still continuing in illegal and unauthorized occupation of the Police Station Hazrat Nagar, Garhi and is surrounded by four feet height boundary wall of the police. The team attempted to mislead by observing that the land owners of Khasra plot Nos. 277 and 278 have not requested to give possession of their aforesaid land so that they may use their land. This statement itself is totally misleading and mischievous inasmuch as once the land is in occupation of the Police Station and is surrounded by boundary wall, it is beyond imagination for an individual land owner to enter into the Police premises and use his land. Form

8. In paragraph nos. 4 & 7 of the supplementary affidavit dated 23.05.2023 filed today, the petitioner has stated as under:

"4. That on 16.05.2023, Additional Superintendent of Police Sambhal with Executive Engineer P.W.D. and some other persons/offcials reached at Police Station Hazrat Nagar Garhi at about 5:00 PM and called the petitioner on spot and threatened him that, " 30 55 , 2 ¡ ¢ £ □ ¥ ƒ § ¡ ¢ § ¤ F.I.R. , ' ¢ §¢ £ ¢ ' ¢ ¡ " « ¢ ' ‹ , ¤¢› " › ¢ ¡ ¢ □ " ¢ ¤ › ¤¢› ¤ › § ¢ ¢ ¡ §¢ ¤ ¢ " ¢ ¢ " ¡ ", thereafter S.H.O. Ramveer Singh asked to the petitioner many time for withdrawal the case.

5. That in the same matter other farmers of the village also threatened by S.H.O. Sri Ramveer Singh and pressurized to give consent for the land in question in favour of Police Station, being aggrieved other farmers made complaint before Director General of Police, U.P. vide letter / affidavit dated 23.05.2023. A true copy of letter/affidavit filed by the other farmers is being filed herewith and marked affidavit Annexure No.S.A.1 to this supplementary affidavit."

9. Alongwith the aforesaid supplementary affidavit an affidavit in the form of application submitted by some land owners of Khasra Plot No. 277 Kha, measuring 0.081 hectares, 279 Kha, measuring 0.121 hectares and 280kha measuring 0.166 hectares, total 0.368 hectares, has been filed which is

addressed to the Director General of Police, Uttar Pradesh, Lucknow, in which the other land owners have stated as under:

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: 23.05.2023 “ £

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7. ¢ “ « ¢ ¢ £ † ¢ ¢ "

10. The facts as aforequoted and particularly the averments made in paragraph 4 & 5 of the supplementary affidavit dated 23.05.2023 and the aforequoted joint applications of 7 individuals alongwith affidavit, prima facie shows that the respondents are directly interfering in the proceedings of this writ petition and thus prima facie are committing criminal contempt. The facts, as briefly aforequoted also prima facie shows that the respondents have filed false and misleading affidavits before this Court. It further goes to show that the Police is acting as a land grabber and has no fear of Rule of Law.

11. The present case is not the only incident of such type of conduct of the respondents, we have noticed that in several writ petitions arbitrary and illegal role of Police and administration in land matters including illegally encroaching the lands of individuals and when the individuals resort to legal proceedings they are being threatened by the Police to implicate them in false criminal cases. In this regard, it would be suffice to refer to the Writ C No. 35114 of 2022 (Ram Karan Singh v. State of U.P. and 3 Ors.).

12. Looking at the increasing tendency of the illegal acts of the respondents, as briefly noted above, we are constrained to direct the respondent nos. 1, 2 3, 4 & 7 to remain personally present before this Court and explain their conduct on affidavit and also show cause as to why appropriate orders may not be passed against them."

3. Pursuant to our order dated 24.05.2023, the respondent nos.1 and 2 have filed today exemption applications alongwith affidavits. Shri P.C. Meena, Additional Director General of Police, Bareilly Zone, Shri Manish Bansal, District Magistrate, Sambhal, Shri Chakresh Mishra, Superintendent of Police, Sambhal and Shri Vinod Kumar Mishra, Station House Officer, P.S.-Hazratnagar Garhi, Sambhal are personally present in Court. The respondent nos.1, 2, 3, 4 and 7 have also filed their affidavits. All the affidavits are taken on record. In paragraph nos.4 and 5 of the affidavit accompanying the exemption application, the respondent nos.1 has stated as under:

"4. That it is submitted here that on 25.05.2023, a Mega Sports Event is going to be inaugurated in Lucknow Headquarter which will continue up till 03.06.2023, in which thousands of athletes/students from about 200 Universities across India will be participating and as such for proper coordination and management of the event and in the public interest, the deponent has to be present in Lucknow and due to the aforesaid unavoidable circumstance, the deponent would not be able to appear before the Hon'ble Court on 25.05.2023.

5. That further it is submitted here that the deponent is also having the charge of Principal Secretary to Chief Minister and he has to coordinate and manage the programmes of Chief Minister and on

25.05.2023, the programmes of Chief Minister is to visit Saharanpur and the deponent being the Principal Secretary to Chief Minister has to manage and coordinate the visit of the Chief Minister to Saharanpur and as such due to the aforesaid unavoidable circumstance, the deponent would not be able to appear before the Hon'ble Court on 25.05.2023. As such, it is prayed that the Hon'ble Court may graciously be pleased to accept the present exemption application and exempt the personal appearance of the deponent on 25.05.2023."

4. Learned Additional Advocate General submits that both the respondent nos.1 and 2 have taken a serious view of the matter and they shall take all steps that such type of incidents of encroachment by police or any government officer/official does not take place in the whole of the State of Uttar Pradesh. He submits that the respondent nos.1 and 2 i.e., the Principal Secretary, Home and the Director General of Police, Uttar Pradesh, Lucknow both have made every effort to appear before this Court in compliance to the order dated 24.05.2023 but because of extreme urgency for their presence at Lucknow, they could not appear for which they are tendering unconditional apology as is also reflected from paragraph no.6 of the affidavit accompanying the exemption application.

5. We find that the respondent nos.1 and 2 have issued some directions to take action, as is appearing from the averments made in their personal affidavits, therefore, personal presence of the Principal Secretary, Home (respondent no.1) and the Director General of Police, Uttar Pradesh (respondent no.2) is hereby exempted.

6. In paragraph no.5 of his personal affidavit, the Principal Secretary, Home has stated that vide letter dated 02.05.2023, he has directed the District Magistrate, Sambhal and Superintendent of Police, Sambhal to file affidavits within prescribed time in compliance to the direction of the Court. In paragraph no.6 of his affidavit, the Principal Secretary, Home has stated that he has directed for an enquiry in the matter of illegal occupation of land of individuals vide Office Memorandum dated 24.05.2023.

7. The respondent no.2 i.e., Director General of Police, U.P., Lucknow has stated in paragraph nos.4 and 5 of his compliance affidavit, as under:

> "4. That it is submitted here that complaint referred in paragraph 9 of the Hon'ble court's order dated 24.5.2023 is not yet received in deponent's office. However on basis of facts mentioned in Hon'ble court order dated 24.05.2023 deponent has issued a direction to Additional Director General of Police (ADG), Bareilly Zone to get the matter enquired into by an officer not below the rank of Deputy Inspector General of Police urgently. Copy of the letter dated 24.05.2023 addressed to ADG, Bareilly Zone is being enclosed herewith and marked as annexure no.1 to this affidavit.
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> 5. That moreover in compliance of the Hon'ble Court order, as per the report of Revenue team dated 24.05.2023 the boundary wall of police station Hajrat nagar Gadhi has already been demolished and now the aforesaid police station situated at gata number 276 Gha is only occupying the land as mentioned in the revenue record

i.e 0.470 hectare and presently no land of any individual is in possession of the concerned police station Hajrat nagar Gadhi. Copy of spot memo of Revenue team dated 24.05.2023 alongwith photographs is being annexed here with as Annexure no.2 to this affidavit."

8. The District Magistrate, Sambhal has stated in paragraph nos.4, 5 and 6 of his compliance affidavit dated 25.05.2023, as under:

"4. That it is submitted here that in compliance of the order of this Hon'ble Court dated 24.05.2023, the boundary wall of Police Station Hazratnagar Garhi has been demolished and the land of Gata No. 277 and 278 had been vacated which was earlier within the boundary wall of the police station. Presently, Police Station Hazaratnagar Garhi is only occupying the land of Gata No. 276Gha measuring 0.470 hectare only and no land of any individual is occupied by the Police Station Hazaratnagar Garhi. A true Photostat copy of spot memo prepared by the Revenue Team along with Photographs are being collectively filed herewith and marked as Annexure No. A-1 to this affidavit.

5. That moreover in compliance of the order of this Hon'ble Court dated 02.05.2023, with regard to the determination of compensation/damage of the land which was within the premises of Police Station Hazaratnagar Garhi. On 16.05.2023, a 6 member committee was constituted in furtherance of the provision of Clause 3(1) of the Government Order dated 12.05.2016 who had submitted its report dated 24.05.2023, in which with regard Gata No. 275, 277 and 278 which was within the premises of Police Station Hazaratnagar Garhi, the amount of compensation/damage has been determined to the tune of Rs.19,19,837/- and further a chart has also been produced with regard to the amount of compensation/damage payable to individual persons in accordance with their share in the land in question. Further the aforesaid report has been forwarded to the Principal Secretary, Home, Government of U.P., Lucknow for further action. A copy of the report dated 24.05.2023 along with the letter of the deponent dated 24.05.2023 are being annexed herewith and marked as Annexure No. A-2 and A-3 to this affidavit.

6. That further, it is submitted here that the deponent has very high regards for the majesty of this Hon'ble Court and he has not tried to suppress any material facts with regard to the occupation of land of individuals by the Police Station Hazaratnagar Garhi but the said fact was not mentioned in the affidavit of the deponent filed on earlier occasion, out of the reason that the present petition was filed by the petitioner with regard to Gata No. 275 only and in the prayer clause writ petition, there is no mention of Gata No. 277 and 278 which was included in the enquiry report, the enquiry report of 29.06.2022 was duly annexed to deponent's affidavit and as such deponent had no intention to hid any fact. Further, it is submitted that on 24.05.2023 the boundary wall of Police Station Hazaratnagar Garhi has been demolished and Gata No. 277 and 278 has been set free and now the Police Station

> Hazaratnagar Garhi is in occupation of the land measuring 0.470 hectare of Gata No. 276Gha which belongs to the Police Department and is also mentioned in the Revenue Record. Moreover, the deponents tenders unconditional apology for the delay in compliance of the order of this Hon'ble Court and in future, the deponent would be more cautious to comply the order of this Hon'ble Court in the shortest possible time."

9. Alongwith his compliance affidavit dated 25.05.2023, the District Magistrate, Sambhal has filed, as Annexure-2, a report of team of six officials giving computation of damages in terms of Rule 67(4)(b) of the U.P. Revenue Code, 2006, which comes to Rs.19,19,837/- for illegal use and occupation of the land of Khasra Plot Nos.275, 277 and 278 for a period of 5 years 3 months and 23 days by the Police Department. It has been stated in the aforesaid report that on the basis of shares of the farmers in the aforesaid land of Khasra Plot Nos. 275, 277 and 278, the damages are liable to be paid to them. The District Magistrate, Sambhal, who is personally present before this Court has given an undertaking to this Court that the damages/compensation shall be paid to the farmers/land owners of Khasra Plot Nos.275, 277 and 278 within one month.

10. Learned Additional Advocate General states on the basis of report filed as annexure-2 to the compliance affidavit dated 25.05.2023 of the District Magistrate, Sambhal that the payment of damages/compensation to the land owners of the aforesaid Khasra Plots for illegal use and occupation of their land by the police department under Rule 67(4)(b) of the U.P. Revenue Code, 2006 shall be paid within one month from today, after getting the allotment of budget through the Principal Secretary, Home. We direct, accordingly.

11. Alongwith compliance affidavit, the District Magistrate, Sambhal has also filed a report of Tehsil authorities dated 24.05.2023 regarding removal of boundary wall and leaving the illegal possession over the land of individuals. The aforesaid report dated 24.05.2023 submitted by the Tehsil authorities is filed as annexure-1 to the compliance affidavit dated 25.05.2023 of the District Magistrate, Sambhal, which is reproduced below:

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> ¡ ¢ ' 279/0.240 ¢ ' 280/0.330
> “ † ¢ “
> ¡ † ¢ ¥ ' ¥ ¢ ¡"

12. The Superintendent of Police, Sambhal in his compliance affidavit dated 25.05.2023 has taken the same stand as has been taken by the District Magistrate, Sambhal.

13. The petitioner has got possession of his land. The District Magistrate, Sambhal, the Superintendent of Police, Sambhal and the ADGP, Bareilly Zone, who are personally present before this Court, stated that the authorities shall not interfere, in any manner, with the use, occupation and enjoyment of the land by the petitioner or other individuals of Khasra Plot Nos. 275, 277 and 278. Since, the respondents have now removed their illegal possession from the land of individuals, yesterday i.e., on 24.05.2023, therefore, the respondents are restrained from interfering with the possession, use and enjoyment of their land by the land owners, in accordance with law.

14. All the aforesaid officials have also tendered their unconditional apology. They further stated that the local police shall not harass the petitioner or other individual, who are owners of Kharas Plot Nos.275, 277 and 278, in use, occupation and enjoyment of the land in question by them.

15. Article 300A of the Constitution of India mandates that no person shall be deprived of his property save by authority of law. Facts of the present case, as noted above, leaves no manner of doubt that the respondents have deprived the petitioner and other land owners of their property, without authority of law. Land is a scarce natural resource. Owner of a land as guaranteed under the Constitution of India, cannot deprived of his rights except under valid law for compelling needs of the Society and not otherwise. Similar is the view of Hon'ble Supreme Court in the case of Uddar Gagan Properties Limited vs. Sant Singh (2016) 11 SCC 378 (para 30). In the case of Prem Chand vs. State of U.P. and Others (2005) 61 ALR 484 (Allahabad), a Division Bench of this Court referred to Article 300A of the Constitution of India and held that State Authorities cannot be allowed to act as a land grabber and the writ petition was allowed with exemplary cost.

16. Use of power for a purpose different from one for which power is conferred is colourable exercise of power. Statutory and public power is trust and the authority on whom such power is conferred is accountable for its exercise. Fraud on power voids the action of the authority. Mala fide can be inferred from undisputed facts, even without naming a particular officer and even without positive evidence. In the present set of facts, as noted above, abuse of power for illegal and unauthorized occupation of the land of individuals and not vacating it despite orders of this Court until this Court called for personal presence of the top officers vide order dated 24.05.2023, is evident on record. Settled principles of law, which have been referred above are also fortified by the law laid down by Hon'ble Supreme Court in the case of State of Punjab vs. Gurdial Singh reported in (1980) 2 SCC 471, Greater Noida, Industrial Development Authority vs. Devendra Kumar and Others reported in (2011) 12 SCC 375, State of Punjab vs. Ramji Lal reported in (1970) 3 SCC 602 and Express Newspapers (P) Limited and Others vs. Union of India and Others reported in (1986) 1 SCC 133, which have also been reiterated in a subsequent judgement in the case of Uddar Gagan Properties Limited (supra) (para 23) (SCC).

17. However, in view of the undertakings given on affidavits by the respondent nos.1, 2, 3, 4 and 7 and also through learned Additional Advocate General and the undertaking given by officers present in Court, as aforenoted, we dispose of this writ petition with directions to the respondents as under:

> (a) The respondents shall not interfere in the peaceful use, occupation and enjoyment of the land in question by the petitioner and other land owners, except by authority of

law.

(b) The respondent nos.1 and 3 shall ensure that payment of damages, as determined by the revenue team on 24.05.2023 for illegal and unauthorized use and occupation by the respondents, of land of Khasra Plot Nos.275, 277 and 278 for a period of 5 years 3 months and 23 days, shall be paid by the respondents to the land owners within one month from today.

(c) The respondent nos.1 and 2 shall issue appropriate government order/circular to the district administration and police authorities in the whole of State of Uttar Pradesh that the land of individuals be not encroached by any department or officer of the State Government and if there is any such encroachment, it be removed and vacated within three months from today and its actual physical possession be handed over to the land owner with damages/compensation for the period of illegal and unauthorized use, to be computed as per Rule 67(4)(b) of the U.P. Revenue Code Rules, 2006, as has been computed and granted in the present case.

(d) District and Tehsil level authorities or the police authorities shall not interfere in matters of civil dispute between individuals/private persons relating to landed property, except by authority of law or under orders of a competent Court.

18. With the aforesaid direction, the writ petition is disposed of.

19. Personal presence of all the Officers, who are present today before this Court is exempted.

Order Date :- 25.5.2023 Ankit.